

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE OCEAN

Complete Community Opposition How-To

A practical guide for communities and campaigners facing offshore drilling, deep-sea mining, dredging, seabed cables, offshore industry and destructive fishing — grounded in the maritime zones that decide who has power, the International Seabed Authority, the High Seas Treaty, and the coastal state's own permitting system

This guide uses the terms you will actually encounter (the territorial sea, the exclusive economic zone, the continental shelf and its extension, the high seas, "the Area", the ISA and its exploration contracts, the sponsoring State, the BBNJ Agreement and its environmental impact assessments, area-based management tools, the regional seas conventions and the RFMOs), each explained in plain language where it first comes up.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Distances at sea are in **nautical miles (nm)**.

A note on why there is one ocean guide and not five. What decides the rules is **not which ocean you are in — it is which legal zone**. The International Seabed Authority puts it plainly: what is decisive "is not the depth but whether the specific location lies within a State's continental shelf, extended continental shelf or within the Area." A drill rig 50nm off Ghana and one 50nm off Norway are governed by the same *structure* — the coastal state's own law — even though the countries differ completely. What genuinely varies by ocean is the **regional** layer: which regional seas convention and which fisheries body apply. That is a section of this guide, not a different guide.

A note on money. Commenting costs nothing almost everywhere. The real costs are technical review and, for the international bodies, travel. Most of what works here is free.

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INTRODUCTION & FRAMEWORK

Why This Matters

Most of the planet is ocean, and most of the ocean has, until very recently, been the least governed space on Earth. That is changing fast, in both directions: the industrial pressure is rising — offshore oil and gas, wind, dredging, cables, aquaculture, industrial fishing and now **deep-sea mining** — and so is the law. Two facts define the moment. First, the **International Seabed Authority** has issued **31 exploration contracts** for seabed minerals since 2001 and has **never issued a single exploitation contract**, because the rules permitting commercial mining still do not exist. Second, the **High Seas Treaty** — formally the **BBNJ Agreement**, adopted on 19 June 2023 — **entered into force on 17 January**

2026, creating for the first time a binding framework for protecting biodiversity in the two-thirds of the ocean that lies beyond any country's control.

The single most important thing to understand is that **the ocean is not one legal space but several**, and which one your project sits in determines everything about who you petition and what rights you have. Under the **UN Convention on the Law of the Sea (UNCLOS)** the zones run outward: **internal waters** and the **territorial sea** out to **12nm**, where the coastal state has sovereignty; the **contiguous zone**; the **exclusive economic zone (EEZ)** out to **200nm**, where that state has exclusive rights over resources; the **continental shelf**, which can extend to **350nm** where the shelf physically continues; and beyond all of it the **high seas** and **the Area** — the deep seabed, declared the "**common heritage of mankind**", over which no nation may claim sovereignty. The Area alone covers **181.63 million km²**, **about 54% of the ocean** — a jurisdiction larger than every continent combined.

Where that puts you is decisive. **Inside 200nm, the ocean is governed by an ordinary national permitting system** — the coastal state's environmental assessment law, its public comment periods, its courts. Almost every offshore drilling fight, dredging fight and offshore wind fight in the world is, legally, a domestic administrative case. **Beyond it**, you are dealing with the **ISA** for anything on or under the seabed, and the **BBNJ Agreement** for the water column — international bodies where the public has no vote but the documents are increasingly open.

The honest counterweight is substantial. The ISA is not mandated to monitor activity inside national EEZs at all, so a coastal state can authorise seabed mining in its own waters under its own law with no international check. Decision-making at the ISA and under the treaties is intergovernmental, and NGOs participate as observers rather than as parties. Enforcement at sea is genuinely hard: violations happen over the horizon, and monitoring is expensive. The **United States has never ratified UNCLOS**, which puts the world's largest EEZ partly outside the framework. And the BBNJ Agreement, though now in force, is at the very beginning of its institutional life — its **first Conference of the Parties is expected around January 2027**, and the machinery for high-seas protected areas and impact assessments is still being built.

What "winning" realistically means. Sometimes a licence refused or a moratorium adopted — the deep-sea mining moratorium movement has grown from nothing to a substantial bloc of states. More often: a permit **conditioned**, a survey season **restricted**, a route **moved** away from a reef or a spawning ground, an **area-based management tool** or marine protected area designated, a licensing round **postponed**, monitoring and financial security **imposed**, or an approval **quashed** in a national court for an inadequate assessment. The realistic goal is to establish which zone you are in, use the process that zone provides, and be technically right.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the **zone**, and therefore who decides.
2. **Documentation** — build a record strong enough for a regulator, a tribunal or an international committee.
3. **Local opposition** — organise among the coastal communities and sectors with standing to be heard.
4. **Legal challenges** — the coastal permit, the ISA process, the BBNJ framework, and the courts.
5. **Media strategy** — coverage that raises the political and financial cost.

No single step wins alone. At sea the combination that works is **a coastal community with standing plus a technically unanswerable objection filed in the right forum**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Ocean governance is fragmented by design, and fragmentation favours proponents: a project can fall between a fisheries body, an environment ministry and an international authority, with each assuming another is responsible. Assessing that honestly helps you choose the right tools: the strongest routes are **the coastal state's own assessment and comment process, the sponsoring State's obligations** where deep-sea mining is involved, the **BBNJ environmental impact assessment duties**, and the **regional seas conventions** which often bind more tightly than global ones. Section 13 deals honestly with what enforcement at sea can and cannot do.

How to use this guide

Read Sections 1–3 once, then go straight to Section 4 — the zone question decides everything else. Sections 5–7 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 is candid about the limits.

HOW THE SYSTEM WORKS

Before you can fight anything at sea you have to know which legal zone it sits in, because that single fact determines who decides, what rights you have, and where you file. Everything below flows from **UNCLOS**, the 1982 Convention that divided the ocean into zones and created the institutions that police them.

The zones — and who controls each

Internal waters and the territorial sea (to 12nm). The coastal state has **sovereignty** here, essentially as it does on land. Its ordinary environmental, planning and permitting law applies in full. This is where communities have the most rights and the most direct remedies.

The contiguous zone (12–24nm). Limited enforcement powers for customs, immigration and sanitary matters.

The exclusive economic zone (to 200nm). The coastal state does not own the sea here, but holds **exclusive rights to explore and exploit the natural resources** — oil, gas, minerals, fish, and energy from water and wind. Its domestic law governs licensing. **Most offshore industry in the world sits inside somebody's EEZ**, which means most ocean campaigns are, in law, national administrative campaigns.

The continental shelf, and its extension (to 350nm). Rights over the seabed and subsoil, and over sedentary species. Where the shelf physically continues beyond 200nm a state may claim an **extended continental shelf**, with claims reviewed by the **Commission on the Limits of the Continental Shelf**.

The high seas. Beyond national jurisdiction, open to all states, to be used for peaceful purposes. This is where the **BBNJ Agreement** now operates.

The Area. The seabed and subsoil beyond national jurisdiction — **181.63 million km², about 54% of the ocean**, lying between roughly 200 and 10,000 metres deep — declared the **common heritage of mankind**, so no state may claim it. Activities there proceed **only under ISA regulation**.

The bodies that decide — and what each one controls

The coastal state. For anything inside 200nm, the decisive actor: its ministry issues the licence, its assessment law sets the process, its courts hear the challenge. **Identify the country and you have identified the decision-maker** — and if that country has its own guide in this series, use it alongside this one.

The International Seabed Authority (ISA). Based in **Kingston, Jamaica**, established under UNCLOS and its **1994 Implementation Agreement**, with **169 member states and the European Union**; every UNCLOS party is automatically a member. It regulates mineral activity in **the Area** — and only there. It has issued **31 exploration contracts** since 2001 and, because the exploitation rules are unfinished, **no exploitation contract has ever been granted**. Critically, **the ISA has no mandate over activity inside national EEZs**, and member states are not obliged to report such activity to it.

The sponsoring State. A company cannot contract with the ISA on its own: it must be **sponsored by a state**, which carries obligations to ensure the contractor complies. This is a real and under-used pressure point, because the sponsor is a government with a public, a parliament and courts.

The BBNJ Agreement bodies. The **third implementing agreement** under UNCLOS, adopted 19 June 2023 and **in force since 17 January 2026**, covering **marine genetic resources** and benefit sharing, **area-based management tools** including high-seas marine protected areas, **environmental impact assessments**, and capacity building. Its **first Conference of the Parties is expected around January 2027**, and its institutions are being assembled now — which makes this an unusually good moment to influence how they work.

Regional seas conventions. The layer that genuinely varies by ocean: **OSPAR** in the North-East Atlantic, which built the **world's first regional network of marine protected areas beyond national jurisdiction**; **HELCOM** in the Baltic; the **Barcelona Convention** in the Mediterranean; and the UNEP regional seas programmes elsewhere. These often bind more tightly and move faster than global instruments.

Regional fisheries management organisations (RFMOs). Set catch limits and gear rules for particular species and areas; the route for anything about fishing rather than construction.

The International Maritime Organization. Shipping, pollution from vessels, and the designation of particularly sensitive sea areas.

The International Tribunal for the Law of the Sea (ITLOS). Based in Hamburg, it adjudicates disputes over the Convention's interpretation, and its Seabed Disputes Chamber has addressed the responsibilities of sponsoring States.

Which one is "yours"? Ask: how far offshore is it, and inside whose EEZ? Is it **seabed** or **water column**? Is it **minerals, hydrocarbons, fishing, cables** or **construction**? Which **regional convention** covers that sea? Pinning this down is Step 1, and it is genuinely the whole game.

How a decision is actually made — two journeys

Inside 200nm — the ordinary national path:

1. **Licensing round or application.** The state offers blocks or receives an application.
2. **Environmental impact assessment.** Under the coastal state's own law, usually with a **public comment period** — the same machinery described in this series' country guides.
3. **Consultation** with affected sectors, which at sea means fishers, ports, tourism, and in many countries **Indigenous and coastal communities with recognised rights**.
4. **Decision and conditions**, then monitoring, and typically **decommissioning and financial security** obligations.
5. **Judicial review** in the national courts, which is where a great many offshore approvals have actually been overturned — usually for an assessment that ignored climate effects, cumulative impacts or a protected species.

Beyond 200nm — the international path:

1. **Sponsorship.** A contractor obtains sponsorship from a state.
2. **Application to the ISA** for an exploration contract in the Area, with an environmental plan.
3. **Review** by the ISA's Legal and Technical Commission, then the Council.
4. **Exploitation** would require the completed **Mining Code**, which does not yet exist — hence zero exploitation contracts.
5. **In the water column**, the **BBNJ Agreement** now requires **environmental impact assessments** for planned activities and provides for **area-based management tools**, including protected areas, proposed and agreed through its Conference of the Parties.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Offshore licensing is a direct revenue stream for coastal states, and the same ministry frequently both promotes and regulates it. Seabed minerals are pitched as essential to the energy transition, which gives mining a green framing that fisheries and conservation must argue against. Sponsoring States are often small island economies for whom sponsorship fees are materially significant. Fishing subsidies — estimated at around **\$35 billion a year** — keep distant-water fleets economically viable where they otherwise would not be. And at sea, the cost of monitoring and enforcement falls on the public while the benefit of non-compliance falls to the operator.

The overseers — who watches the decision-makers

- **National courts and information commissioners** in the coastal state — by far the most effective remedy available.
- **The ISA's Legal and Technical Commission and Council**, and the **sponsoring State's** own obligations.
- **The BBNJ Conference of the Parties**, its scientific and technical body, and its impact assessment procedures.
- **Regional seas commissions** — OSPAR, HELCOM, Barcelona and their equivalents.
- **RFMO compliance committees** for fishing.
- **ITLOS** for disputes between states.
- **Scientific bodies and NGOs with observer status**, which are the practical route for outside evidence to reach international tables.

Naming the right body matters: at sea the most consequential early judgment is almost always **which zone the activity sits in** — get that wrong and you will spend months petitioning an institution with no power over it.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented ocean campaigns, not a controlled study. Use them to prioritise effort. The single most important lesson: **success rates inside 200nm look like ordinary national environmental campaigning, and success rates beyond it look like diplomacy**. Know which one you are running.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Coastal community opposition	25-45%	6-24 months	low	Political cost; conditions; consultation reopened
Comment in the coastal state's EIA	30-50%	during the window	none	On the record; conditions; further studies
Fisher and port sector alliance	30-50%	3-18 months	low	Route or season changed; exclusion zones
Judicial review of an offshore permit	25-45%	12-36 months	high	Approval quashed; assessment redone
Freedom-of-information in the coastal state	40-60%	1-4 months	low	The file; the modelling; the correspondence
Regional seas convention route	20-40%	1-4 years	low-moderate	Protected area; discharge or dumping rules
Pressure on the sponsoring State (deep-sea mining)	25-45%	6-24 months	low	Sponsorship withdrawn or paused
ISA process participation via observers	15-35%	1-3 years	low-moderate	Standards tightened; timelines slowed
BBNJ area-based management tool proposal	20-40%	2-5 years	moderate	High-seas MPA designated
Market and finance pressure	25-45%	6-24 months	low	Buyers, insurers or lenders withdraw
All steps combined	45-65%	12-36 months	low-high	Permit refused, quashed or conditioned; route moved; area protected; project shelved

Key insight: all steps together are far more effective than any single one — and at sea the decisive advantage is that **most projects are inside somebody's EEZ**, which means an ordinary domestic legal system with comment periods, freedom of information and courts. Offshore approvals are overturned in national courts more often than most campaigners expect, typically because an assessment ignored **cumulative impacts, climate effects, or a protected species**. Beyond 200nm the picture inverts: no court is available to you, but the **rules for commercial seabed mining do not yet exist**, and the **sponsoring State** is a government you can reach. The distinctive disadvantages are fragmentation between bodies, the difficulty of monitoring anything over the horizon, and the fact that the **ISA has no mandate inside EEZs** — so a coastal state can license seabed mining in its own waters with no international check at all.

A note on cost: commenting, freedom-of-information requests and coalition work cost little. The two expensive items are litigation and attendance at international meetings — and for the latter, working through an organisation that already holds observer status is almost always the better use of money.

Effectiveness Visualization

SUCCESS PROBABILITY (permit refused, quashed or conditioned; route moved; area protected; project shelved)

INSIDE 200nm -- ordinary national process, courts available:

All steps combined:	45-65%
Judicial review:	25-45%
EIA comment + sectors:	30-50%
Single step:	5-50%



BEYOND 200nm -- international bodies, no court for the public:

All steps combined:	30-45%
Sponsoring-State route:	25-45%
Observer participation:	15-35%
Single step:	3-25%



How to read this honestly. Inside the EEZ the arguments that move outcomes are the familiar ones: an assessment that omits **cumulative impacts** across several licences; **climate effects** of the produced hydrocarbons, which courts in several jurisdictions have held must be assessed; **protected species and habitats** in the footprint or the noise field; failure to consult **fishers or Indigenous and coastal rights-holders**; inadequate **spill modelling** or decommissioning security; and reliance on survey data too old to describe the site. Beyond it, the arguments are different: **the**

exploitation rules do not exist, the **precautionary approach** is written into the regime, the **common heritage** principle constrains private appropriation, and the **sponsoring State** bears responsibility for its contractor. What rarely works anywhere at sea is a general appeal to the ocean's importance without a specific procedural or scientific defect attached.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — inside 200nm the courts are genuinely available and genuinely used.
2. **Local opposition** — coastal communities, fishers and ports are the constituency with standing.
3. **Documentation** — the technical record that makes everything else credible.
4. **The international route** — sponsoring State, ISA, BBNJ, regional conventions.
5. **Media and market pressure** — which reaches insurers, buyers and lenders.

Winning ocean campaigns combined a coastal constituency with a specific procedural defect, filed in the coastal state's own system, with a technical annex that regulators could not dismiss.

What Ocean Campaigns Actually Show

A few patterns recur. **The zone decides the fight.** What determines the applicable rules is not depth but whether the seabed lies inside or beyond national jurisdiction — inside 200 nautical miles it is the coastal state's law, beyond it the Law of the Sea regime. **The high seas now have a framework.** The **BBNJ Agreement** was adopted by consensus on **19 June 2023**, reached **60 ratifications on 19 September 2025** and **entered into force on 17 January 2026**, with pillars on **marine genetic resources and benefit sharing**, **area-based management tools including marine protected areas**, **environmental impact assessment**, and **capacity-building and technology transfer**. **Its rules are being written now**, through a **Preparatory Commission** and a first **Conference of the Parties** that had not met when this was written. **The seabed regime is stalled.** The **two-year rule** was triggered in **June 2021**; the deadline expired **9 July 2023 with no exploitation regulations adopted**; none had been agreed when the ISA session closed in **July 2025**; and the provision permits an application to be **considered in that absence**. **Forty states** have called for a moratorium or precautionary pause. **And the regime is being outflanked** — a **US Executive Order of 24 April 2025** sought to expedite seabed licensing under the **Deep Seabed Hard Mineral Resources Act of 1980**, under which a company applied for **two exploration licences and a commercial recovery permit**. The through-line: **name the sponsoring state, use the absence of rules, and get into the rulemaking while it is open.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified, and at sea the identification question is unusually decisive. Answer five questions, and write the answers in a shared document.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: coordinates, block or licence number, activity type and stage, and what is there now — **seabed habitat** (reef, seamount, sponge or coral gardens, hydrothermal vents, nodule fields), **spawning and nursery grounds**, **migratory routes** for cetaceans, turtles, tuna and seabirds, **fishing grounds** and who works them, and any **protected area** nearby. For anything involving noise — seismic survey, piling, mining — establish the **acoustic footprint**, which extends far beyond the physical one. Obtain the assessment and list every admitted impact with its page reference.

Question 2: Who Has Decision-Making Power?

This is the question. Establish: (a) the **distance from shore** and therefore the **zone** — territorial sea, EEZ, continental shelf, extended shelf, high seas, or the Area; (b) if inside 200nm, **which coastal state** and which ministry; (c) if beyond, whether the activity is on the **seabed** (ISA) or in the **water column** (BBNJ, RFMOs); (d) for seabed minerals, the **sponsoring State**; and (e) which **regional seas convention** and **RFMO** cover that sea.

Question 3: What Specific Action Stops It?

Inside 200nm: the permit **refused or conditioned**, the assessment **redone**, the approval **quashed on judicial review**, seasonal or spatial **restrictions** imposed, or the licensing round **withdrawn**. Beyond: **sponsorship withdrawn**, the

exploitation rules **not completed**, a **moratorium** supported, an **area-based management tool** designated, or a **contract area** reduced. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise: the **EIA comment window** in the coastal state, which is short and is your strongest formal right; the **licensing round** dates; **ISA sessions**, where exploration applications and the Mining Code are considered; **BBNJ** processes as they come into operation, with the **first COP around January 2027**; and the **RFMO or regional convention annual meeting**. For judicial review, the period after a decision is typically very short — often weeks — so take advice the moment a permit issues.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually: the operator and its parent; the **sponsoring State** where relevant; the **insurers, lenders and offtakers**, who are unusually exposed to reputational pressure in this sector; the revenue the coastal state expects; and whether the same ministry both promotes and regulates. Use public sources — licence registers, the ISA's published contractor list, company filings, and the coastal state's gazette.

Output of Step 1: a one-page fact sheet with coordinates and zone, the deciding authority, the sponsoring State if any, the applicable regional bodies, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a company announces plans to mine polymetallic nodules and the campaign begins with outrage at "deep-sea mining" in general. Working the questions: **Q1** — you establish the licence block, its depth and what is known to live there, from published survey work. **Q2** — the decisive fact is that no contractor holds a contract in the Area on its own account: it must be **sponsored by a state**, and that state granted sponsorship under its own domestic law. Naming it converts a global grievance into a question one government must answer. **Q3** — the live levers are sponsorship withdrawal, the **absence of adopted exploitation regulations**, the **forty-state pause bloc**, and the financiers and buyers. **Q4** — the deadlines are the ISA's session calendar and any open BBNJ rulemaking. **Q5** — the ownership chain, sponsorship instrument and offtake arrangements are traceable through corporate filings. In an afternoon you know that **the sponsoring state is the campaign, and the missing rules are the argument**.

STEP 2: DOCUMENTATION

Documentation at sea has a particular problem: **almost nobody can see the site**. You cannot photograph a seabed 4,000 metres down or stand on the spawning ground. That makes the evidentiary game different — you are working from published survey data, licence documents, acoustic modelling and the operator's own admissions, and the people who *have* seen the place are fishers and scientists. Both should be in your coalition from the start.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the activity.

The seabed itself. Habitat type and structure — reef, seamount, vent field, sponge or coral garden, nodule field, soft sediment. Note whether the habitat is **slow-recovering**: deep-sea communities and cold-water corals recover over decades to centuries, and in the case of nodule fields the substrate itself does not regenerate on any human timescale. **Irreversibility is among the strongest arguments available at sea.**

The water column. Depth, stratification, currents and the direction a **sediment plume** or discharge would travel. Plume behaviour is frequently the weakest part of a mining or dredging assessment.

Living resources and their users. Spawning and nursery grounds with seasons; migratory corridors for cetaceans, turtles, seabirds and commercially important fish; and the **fishing effort** in the area — which vessels, from which ports, in which months, landing what value. Fisher knowledge is real evidence and is often the only fine-grained record of the site that exists.

Noise. For seismic survey, piling or mining, establish the **acoustic footprint** and its overlap with marine mammal

habitat. Sound travels vastly further underwater than most assessments acknowledge.

Protected and designated areas. Existing MPAs, regional convention designations, particularly sensitive sea areas, and any proposed sites nearby.

How to hold it. Keep a referenced bibliography and a dated log of fisher testimony. Where you have vessel-track or catch data, keep the source and the period.

LAYER 2: PERMIT AND PROCESS ANALYSIS

Show whether the activity is lawfully authorised and adequately assessed. Catalogue four things:

1. **The zone and the authorisation.** Which zone, which authority, which licence or contract, and its number and date. For the Area, note that the ISA has issued **31 exploration contracts and no exploitation contract** — so any claim that commercial mining is authorised should be tested precisely.
2. **The assessment's substance.** Mine it for admitted impacts with page references, then for omissions. The recurring failures are: **cumulative impacts** across multiple licences or activities; **climate effects** of hydrocarbons to be produced; **plume and discharge modelling** based on optimistic assumptions; **noise** underestimated; **baseline data too old** or from a different site; and **alternatives** not genuinely assessed.
3. **Consultation.** Who was consulted, when, and whether **fishers, ports, tourism operators and Indigenous or customary rights-holders** were included. Consultation failures are among the most reliably successful grounds in national courts.
4. **Financial and end-of-life obligations.** Decommissioning security, spill liability, insurance, and — for the Area — the **sponsoring State's** responsibilities for its contractor.

Get expert eyes on it. A short signed critique from a marine biologist, an acoustician, a physical oceanographer able to speak to plume dispersal, or a fisheries scientist is worth far more than volume. Universities with marine institutes, and the scientific staff of regional conventions and RFMOs, are realistic sources.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

At sea, unlike in Antarctica, **economic and community harm is squarely relevant** in national processes, and it is often the argument that carries politically:

- **Fisheries** — the value of the catch at risk, the vessels and crews dependent on it, and the ports where it lands. Quantify per vessel or per community.
- **Tourism and coastal economy** — dive operations, whale watching, beaches at risk from a spill.
- **Food security and subsistence**, particularly in island and coastal communities where fish is the protein base.
- **Health** — spill exposure, contamination pathways into seafood, and air quality near terminals.
- **Cultural and customary rights** — fishing grounds, sacred sites, and traditional tenure, which in many jurisdictions carry legal force.
- **Irreversibility** — say plainly what cannot be restored.

Package this layer twice: a rigorous version for the regulator and any court, and a short version for media and for the fishing and coastal organisations whose members will speak at hearings.

How to Structure Your Documentation

- **Phase 1: Zone and authorisation (Week 1)** — the single most important fact; everything else depends on it.
- **Phase 2: Baseline (Weeks 1-4)** — habitat, fisheries, migration, noise, protected areas.
- **Phase 3: The assessment (Weeks 2-6)** — omissions, modelling assumptions, consultation record.
- **Phase 4: Expert critique (Months 2-3)** — signed, short, before the comment window closes.

Common Documentation Pitfalls (What Fails)

- **Getting the zone wrong** — the most expensive error in ocean campaigning.
- **Missing the comment window**, which is short and is the strongest formal right inside 200nm.
- **Ignoring the fishers** — they hold the site knowledge and the political standing.
- **Treating noise as secondary** — it is often the largest footprint.
- **Accepting plume modelling** without checking its assumptions.
- **Assuming the international bodies can help inside an EEZ** — the ISA explicitly cannot.

Documentation Budget Breakdown

Item	Low (volunteer/academic)	Higher (commissioned)
Licence and permit records	minimal	modest
Literature and habitat baseline	minimal	modest
Fisher testimony and mapping	minimal	modest
Signed expert critique	often free	moderate
Independent plume or noise modelling	—	high
Legal advice / judicial review	modest at first	high

Most is inexpensive. The two items worth real money are **an independent model** where the operator's is doing the heavy lifting, and **counsel** if you intend to litigate.

WHAT TO GATHER, AND WHERE TO FIND IT

The coastal state's licensing register. Blocks, licence numbers, holders, dates and conditions — usually published by the energy, minerals or maritime ministry. This is where you confirm the zone and the authorisation.

The environmental assessment and its annexes, plus the **consultation record** and the decision with its conditions. Where these are not published, use the coastal state's **freedom-of-information law**, which at sea is unusually productive because so much of the underlying modelling is contractor-produced and rarely released voluntarily.

The ISA's published records. The contractor list, the **31 exploration contracts** and their areas, the Legal and Technical Commission's reports, Council decisions, and the draft exploitation regulations. All are public.

BBNJ materials. The Agreement text, ratification status, and — as they come into being — the environmental impact assessment procedures and area-based management tool proposals ahead of the **first COP expected around January 2027**.

Regional seas convention documents. OSPAR, HELCOM, Barcelona or the relevant UNEP regional programme: designated protected areas, discharge and dumping rules, and monitoring reports.

RFMO records. Catch limits, vessel lists, observer coverage and compliance reports.

Fisheries and vessel data. Landings statistics by port and species, and publicly available vessel-tracking, which can establish who actually works the ground the project would occupy.

Company and finance records. The operator's filings and disclosures, its **insurers and lenders**, and its offtake agreements. Ocean projects are unusually sensitive to finance and insurance withdrawal.

How to force a document open. Inside 200nm, the coastal state's **access-to-information law** is the main tool, and it reaches the modelling, the internal advice and the correspondence. Internationally, the ISA publishes a great deal by obligation, and the BBNJ framework is being built with disclosure duties. Ask in writing, cite the instrument, and keep proof.

Free and low-cost help. University marine institutes, fisher associations and cooperatives, regional convention secretariats, and the international NGO coalitions that hold **observer status** at the ISA and the BBNJ process. For anything beyond 200nm, working through an organisation already seated at those tables is the practical route for your evidence to be read.

Tie it to the map. The dots and layers here are your starting index — a mapped offshore project points you to the coastal state and its licensing ministry, and from there to the assessment that governs it.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Ocean campaigns have a structural weakness and a structural strength, and both come from the same fact: **nobody lives at the site**. The weakness is that there is no village to be displaced, no household register, no obvious constituency of the harmed. The strength is that the sea has **workers** — fishers, crews, port labour, dive and tourism operators — whose livelihoods are tied to specific grounds, who hold the only fine-grained knowledge of those grounds, and who carry political standing that pure conservation arguments never do.

Three principles carry special weight here: **the fishers are the campaign** (a coalition of conservationists alone is easily framed as outsiders; a coalition led by people who work the water is not); **organise onshore** (in the ports and coastal towns where the affected sector lives, and in the capital where the licence is issued); and **know which campaign you are running** (inside 200nm you are building toward a national comment period and possibly a court; beyond it you are building toward a sponsoring State, an international meeting and the financial sector).

PHASE 1: FOUNDATION (Weeks 1-4)

Step 1a: Establish the zone, then the licence. Confirm the coordinates and which zone they fall in, identify the deciding authority, and request the licence and assessment. Nothing else can be planned until this is settled.

Step 1b: Go to the harbour first. Reach the fishing cooperatives, vessel owners and crews working the ground, and the ports where they land. Ask which months matter, which grounds, and what the catch is worth. This is simultaneously your best evidence and your strongest constituency.

Step 1c: Affinity groups by concern. People join through fishing livelihoods, tourism and diving, food security, spill risk to beaches, whales and turtles, or opposition to seabed mining in principle. Keep them distinct rather than merging them into one message.

PHASE 2: PUBLIC LAUNCH (Weeks 4-12)

Step 2a: File inside the comment window. Inside 200nm this is the strongest formal right you have. Make specific points — cumulative impacts, noise, plume modelling, consultation failures, climate effects where the jurisdiction requires them (Section 8B).

Step 2b: Get the fishing sector to file separately. A submission from a fishers' association carries different weight from an environmental one, and regulators find it much harder to dismiss. Help them write it; do not write it for them.

Step 2c: Request the modelling. Use freedom of information for the plume, noise and spill models and their assumptions (Section 8C). This is where assessments most often fail.

Step 2d: For seabed minerals, write to the sponsoring State. A sponsoring government has obligations for its contractor and a domestic public of its own (Section 8E).

Step 2e: Media at launch. Time coverage to the comment window or the licensing round.

PHASE 3: COALITION EXPANSION (Months 3-8)

Step 3a: Broaden the alliance. Bring in fishing cooperatives and port authorities, tourism and dive operators, coastal municipalities, Indigenous and customary rights-holders where they exist, marine scientists and their institutes, national environmental organisations, and — where the activity is beyond 200nm — the international coalitions with **observer status**.

Step 3b: Coalition agreements. Agree who files, who speaks publicly, who holds the technical record, and how you handle the moment a proponent offers compensation or a community fund to one group. Settle that in advance: selective payments are the standard method for splitting a coastal coalition.

Step 3c: Reach the money. Ocean projects depend on **insurers, lenders and offtakers**, and this sector has proven unusually responsive. Identify them and write to them with the technical case, not with slogans.

PHASE 4: SUSTAINED PRESSURE (Months 6-18)

Step 4a: Take advice on judicial review the day a permit issues. Inside 200nm this is the remedy with real teeth, and the filing period is often only weeks. Offshore approvals have been quashed for ignoring cumulative impacts, climate effects, protected species and consultation duties.

Step 4b: Work the regional convention. OSPAR, HELCOM, the Barcelona Convention and their equivalents can designate protected areas and set discharge rules, and they often move faster than global processes.

Step 4c: Engage the international process where it applies. For the Area, the **ISA** sessions and the unfinished exploitation rules; for the water column, the **BBNJ** environmental impact assessment provisions and area-based management tools, with the first COP expected around **January 2027**.

Step 4d: Public actions. Harbour rallies, flotillas, port-side demonstrations and hearings turnout are the traditional and effective forms. Keep everything lawful; take advice before anything on the water, where maritime safety law is strict and the legal consequences of interfering with a vessel are far more serious than an equivalent action ashore.

Worked example: a coalition that unlocks the strong levers

A licensing round offers blocks 60nm offshore, over ground a fleet of small trawlers and long-liners has worked for generations. The instinct is to write to the International Seabed Authority. That would waste a year. Working the questions: **Q1** — you record the grounds, the gear, the landings and the households that depend on them. **Q2** — 60nm is **inside the exclusive economic zone**, so this is not high-seas law at all: the **coastal state** licenses it under its own legislation, and the right tool is that country's guide, its environmental assessment process and its courts. **Q3** — the live levers are the national licence conditions, the domestic impact assessment and any public comment window. **Q4** — the deadlines are national, not international. **Q5** — the operator and its financiers are traceable through the national register. The lesson generalises: **fix the zone before anything else, because it determines which government, which law and which guide applies.**

Opposition Building Budget: Year-Long Campaign

Moderate, and front-loaded toward two items. Cheap: harbour meetings, freedom-of-information requests, comment drafting, coalition work, media. Expensive: **independent modelling**, where the operator's assumptions are doing the work and only a rival model will shift them, and **litigation**, which is the most powerful remedy inside 200nm and the most costly. Keep transparent accounts, and agree in advance how any compensation offer to part of the coalition will be handled.

STEP 4: LEGAL CHALLENGES

There is no court of the ocean and no permit counter on the high seas. What exists is a set of duties that attach to **states** — the state that sponsors a seabed contractor, the state whose flag a vessel flies, the states that are party to the new Treaty. Three tracks — the sponsoring or flag state, the seabed regime, and the high-seas regime.

TRACK 1: THE SPONSORING OR FLAG STATE (the real point of leverage)

- **Sponsorship is a legal act, and it can be withdrawn.** No company holds a contract in the Area on its own account: it must be **sponsored by a state party**, which assumes obligations to ensure compliance. Sponsorship is granted under that state's own law by its own government — the single most attackable link in the chain. Persuade one government to withdraw or refuse it and the contractor loses its legal footing entirely.
- **Sponsoring states carry responsibility.** The obligations are ones of due diligence — adopting laws and administrative measures reasonably appropriate to secure compliance — and have been the subject of authoritative international legal opinion. A sponsoring state without adequate legislation is exposed, and saying so publicly is legitimate.
- **Flag state jurisdiction.** For vessels — fishing, dumping, research, geoengineering — the **flag state** regulates and enforces on the high seas. Complaints belong to that state, and a flag of convenience is itself the story.
- **Domestic routes in those states.** Parliamentary questions, freedom of information, national environmental impact requirements, and in some jurisdictions judicial review of the sponsorship decision. **This is the only place a court is realistically available.**
- **Market and finance levers.** Insurers, banks, buyers and manufacturers have withdrawn from deep-sea mining, and commitments not to source seabed minerals are enforceable reputationally. For fisheries, retailer and certification pressure is a real constraint.

TRACK 2: THE SEABED — THE ISA AND THE AREA

- **The status of the resource.** The Area and its minerals are the **common heritage of mankind**, administered by the ISA on behalf of humanity as a whole. That is the legal basis for insisting benefits and risks are matters of general concern, not contractor prerogative.

- **The regulatory vacuum.** The **two-year rule** was triggered in June 2021 and expired on **9 July 2023 without exploitation regulations being adopted**; none had been agreed when the ISA's July 2025 session closed. The provision nonetheless permits an application to be **considered in the absence of regulations**. Argue the obvious: approving exploitation without an agreed environmental framework, standards or liability regime cannot satisfy the duty to ensure effective protection of the marine environment.
- **The precautionary pause.** **Forty states** have called for a moratorium or precautionary pause — the practical vehicle for delay, and adding a state to it is a concrete objective.
- **Sponsoring state accountability at the ISA.** Council members are governments; a sponsoring state sitting on the Council can be asked publicly how it reconciles the two roles.
- **Unilateral routes around the Authority.** Where a company seeks to mine the international seabed under a **national statute** rather than an ISA contract, the argument is that this bypasses the regime the Convention established and cannot confer good title to the common heritage of mankind. Expect it to become the central legal question of the next few years.

TRACK 3: THE HIGH SEAS — THE BBNJ AGREEMENT AND THE SECTORAL BODIES

- **Environmental impact assessment, for the first time.** The Agreement brings **modern environmental impact assessment standards** to activities beyond national jurisdiction. Thresholds, procedures and participation arrangements are being settled now through the **Preparatory Commission** and the forthcoming **first Conference of the Parties**. Comment while they are open.
- **Area-based management tools and marine protected areas.** For the first time there is a route to designate **protected areas on the high seas** — the mechanism that makes protecting **30% of the ocean by 2030** achievable. Proposals come from states, so the work is persuading one to carry yours.
- **Marine genetic resources and benefit sharing, and capacity-building and technology transfer** — the other two pillars, and why many developing states supported the Agreement.
- **The fisheries bodies.** Catch limits, gear rules and closures are set by **regional fisheries management organisations**, each with its own membership and scientific committee. If your issue is fishing, that is your forum.
- **Dumping and pollution.** Disposal at sea is governed by the **London Convention and Protocol**, vessel-source pollution by **MARPOL** through the **IMO**, and ocean fertilisation and other marine geoengineering fall under the London Protocol framework.
- **Coordination, not supersession.** The Agreement is designed **not to undermine** existing instruments. In practice the ISA keeps the seabed and the fisheries bodies keep the fish, and part of the coming fight is how far the new environmental standards reach into their decisions.

The three legal challenge types

TYPE 1: THE SPONSORING OR FLAG STATE

Sponsorship withdrawal, due-diligence obligations, domestic law and courts, parliamentary and information rights, and market pressure.

TYPE 2: THE SEABED REGIME

Common heritage, the missing exploitation regulations, the precautionary-pause bloc, and challenges to unilateral national licensing.

TYPE 3: THE HIGH-SEAS REGIME

BBNJ impact assessment and protected areas, the RFMOs, the London Protocol and the IMO.

Legal Strategy Decision Tree

1. **Which state sponsors or flags this?** → That government is your target; find its domestic law and its ministers.
2. **Is it seabed minerals in the Area?** → The ISA, the absent regulations, and the pause bloc.
3. **Is it a vessel activity — fishing, dumping, geoengineering?** → Flag state, plus the RFMO or the London Protocol.
4. **Is a BBNJ process open?** → File into the impact-assessment and protected-area rulemaking while it is still being written.
5. **Is a company relying on national law to mine the Area?** → Challenge the legal basis, and pursue its financiers and buyers.

Litigation and Advocacy Success Factors

A correctly identified **sponsoring or flag state**; a defensible scientific objection; the **absence of agreed rules** as the central argument; a state willing to carry a protected-area or pause proposal; engagement with **financiers, insurers and buyers**, who move faster than governments; and submissions timed to the ISA session, RFMO meeting or BBNJ COP.

What to Avoid

Treating the ocean as one jurisdiction; campaigning about EEZ drilling under this guide when it belongs to a country guide; missing the rulemaking windows open now; assuming the Treaty binds states that have not ratified; and overstating the science, which in a field this contested is immediately exploited.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that work in the ocean.

A contractor operating under one state's sponsorship → that state's due-diligence obligations. Feed it with: the sponsorship instrument, the state's implementing legislation or its absence, and the contractor's compliance record.

Commercial exploitation proposed with no agreed exploitation regulations → cannot satisfy effective protection. Feed it with: the expiry of the two-year deadline in July 2023 and the absence of adopted rules since.

Irreversible loss of habitat that took millennia to form → precaution. Feed it with: nodule fields, seamount and vent community science, and recovery timescales.

Sediment plumes and noise crossing the licence area → transboundary and cumulative effects. Feed it with: plume modelling, midwater ecology, and the proximity of other licence blocks.

A vessel flying a flag of convenience → weak flag-state control. Feed it with: the registry, the ownership chain, and the enforcement record.

High-seas fishing overlapping predator foraging grounds → RFMO conservation duties. Feed it with: catch and effort data, observer coverage, and predator tracking studies.

A proposal to dump or fertilise at sea → the London Protocol framework. Feed it with: the assessment framework and the precedent for treating geoengineering cautiously.

An area with outstanding biodiversity value → an area-based management tool under the new Treaty. Feed it with: the biological case, and a state willing to sponsor the proposal.

The pattern: **name the responsible state, use the absence of rules, and put the science where the decision is actually taken.**

STEP 5: MEDIA STRATEGY

Media matters here more than in almost any national campaign, because there is no local electorate and no court of first instance. Coverage is how a distant, technical decision becomes politically costly for the handful of governments and companies that can be moved.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the sponsorship instrument, the licence-block map, a scientist who can describe what lives there, a fisher whose interests are engaged, and the date of the next session. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Stakes + a credible threat + a documented governance failure + a David-and-Goliath frame + a strong image = coverage.

Three angles reliably travel: **mining a place nobody has ever seen, under rules that do not exist; a company going around the international body created to govern it; and the last unprotected two-thirds of the planet finally getting a treaty.** Deep-sea imagery is exceptionally strong material and is often freely licensed by research institutions.

Know the Outlets That Cover This Beat

Map the **science and environment correspondents** at international outlets, the ocean and fisheries trade press, outlets in the **sponsoring or flag state** — which matter most, since that is where the decision sits — and Pacific regional media, which cover seabed mining as direct national interest.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access to scientists and affected fishers, and be scrupulously accurate: industry rebuts professionally here, and one overstatement discredits everything else.

Why media matters even when it doesn't make the front page

Coverage reaches the minister who signs or withdraws sponsorship, the parliamentarian who can ask about it, the bank or insurer reconsidering exposure, the manufacturer pledged not to buy seabed minerals, and delegations preparing for the next session. It also creates a dated record against which later claims can be tested.

Sample Media Timeline

Launch when the sponsorship, application or proposal becomes public; refresh at each milestone — the scientific critique, the ISA session, the RFMO meeting, the BBNJ COP, any financier or buyer withdrawal, and any state joining the pause bloc.

Media Measurement

Track coverage, but measure what matters: whether a state joins the moratorium bloc, whether a sponsorship is questioned or withdrawn, whether a financier or buyer exits, whether an application is deferred, and whether a protected-area proposal gains a state sponsor.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, referenced and short. Address them to the **state that sponsors or flags the activity**, in that state's working language, and time them to the relevant session. Keep proof of every submission.

8A. Email to a reporter (story pitch)

Subject: [Country] is sponsoring seabed mining in [zone] — and the rules that would govern it still don't exist

Dear [name],

[Company], through its subsidiary [entity], holds a contract in the [zone] sponsored by **[country]**. It has signalled an intention to apply for commercial exploitation.

The International Seabed Authority has **still not adopted exploitation regulations**. The deadline created by the "two-year rule" expired on **9 July 2023**, and no regulations had been agreed when the ISA's session closed in July 2025. The same provision allows an application to be **considered in the absence of regulations**.

Forty states have called for a moratorium or precautionary pause. [Country] is not among them / is among them but continues to sponsor [entity].

[Scientist, institution] can describe what lives in the licence area and how long it takes to recover — [one line]. Imagery is available.

The next ISA session is [date]. Could we speak this week?

[Name] · [Organisation] · [phone] · [email]

8B. Letter to a sponsoring state

To: The Minister for [Foreign Affairs / Environment / Natural Resources], [Country] Re: [Country]'s sponsorship of [entity] for activities in the Area

[Country] sponsors [entity] in respect of [contract / application] in the [zone]. Sponsorship is not a formality: a sponsoring state assumes obligations of due diligence, including the adoption of laws and administrative measures reasonably appropriate to secure compliance by the entity it sponsors.

We ask [country] to answer four questions publicly: 1. **What legislation** does [country] have in force implementing its obligations as a sponsoring state, and does it provide for environmental assessment, monitoring, liability and financial security? 2. **How can effective protection of the marine environment be ensured** when the ISA has adopted **no exploitation regulations**, the two-year deadline having expired on 9 July 2023? 3. **What liability** would [country] bear for damage caused by [entity], and is that risk provided for? 4. **Will [country] suspend or withdraw sponsorship** pending adoption of a robust regulatory framework, as **forty states** calling for a precautionary pause have effectively urged?

We request a written response and are copying this to [parliamentary committee].

[Name, organisation, date]

8C. Submission to the ISA ahead of a session

Re: Observations for the [xx] session of the Council of the International Seabed Authority

The Area and its resources are the **common heritage of mankind**, and the Authority acts on behalf of humanity as a whole. We submit:

1. **No exploitation may responsibly be approved without adopted rules, regulations and procedures.** The two-year period expired on 9 July 2023; no exploitation regulations have since been adopted. Considering an application in that vacuum cannot satisfy the obligation to ensure effective protection of the marine environment.
2. **The scientific basis remains insufficient.** [Summarise: baseline gaps, plume behaviour, recovery timescales, connectivity — with references.]
3. **Sponsoring state capacity is uneven.** We invite the Council to require evidence of implementing legislation, monitoring capability and financial security before any application proceeds.
4. **Unilateral licensing outside this Authority** is inconsistent with the regime the Convention establishes for the Area, and we invite the Council to say so.

[Organisation, date, references]

8D. Letter to a flag state about a vessel

Re: [Vessel name], IMO [number], flagged to [country] — activities in areas beyond national jurisdiction

To the maritime administration of [country]:

On the high seas, regulation and enforcement in respect of a vessel rest with its **flag state**. We record the following concerning [vessel], flagged to [country]: 1. **Activity** — [fishing / discharge / dumping / at-sea transfer / research], observed or reported on [dates] at [positions]. 2. **Applicable rules** — [RFMO conservation measure / MARPOL / London Protocol], and the specific obligation engaged. 3. **Evidence** — [AIS records, observer or inspection reports, imagery], attached.

We ask what inspection, authorisation and enforcement action [country] has taken, and request a written response.

[Name, organisation, date]

8E. Comment into a BBNJ rulemaking process

Re: Comment on [environmental impact assessment standards / area-based management tool procedures] under the BBNJ Agreement

The Agreement entered into force on 17 January 2026 and its implementing arrangements are being developed by the Preparatory Commission and the first Conference of the Parties. We submit:

1. **Thresholds** — screening should capture activities with potential for more than minor or transitory effects, and should expressly include seabed mineral activity, large-scale fishing gear changes, and marine geoengineering.

2. **Transparency** — draft assessments should be **publicly available**, with a defined comment period and an obligation to respond to comments in the final assessment.
3. **Cumulative effects** — assessment must address effects in combination with other activities, not in isolation.
4. **Relationship with existing bodies** — the duty not to undermine existing instruments should not become a reason for the Agreement's standards to be disapplied where those bodies act.
5. **Participation** — provision for observers, scientists and affected coastal and Indigenous communities.

[Organisation, date]

8F. Proposal approach for an area-based protection measure

Re: Proposed area-based management tool / marine protected area at [feature], [zone]

To the delegation of [state]:

We invite [state] to consider proposing protection for [feature — seamount chain, vent field, gyre, spawning ground] at [coordinates].

The case: [endemism, habitat-forming species, aggregation or spawning function, recovery timescales, and its role in wider connectivity] — references attached.

The threat: [existing or proposed fishing, seabed contracts, cable routes, shipping density].

The fit: the measure would contribute to the goal of protecting **30% of the ocean by 2030**, and complements [existing regional measure].

We can supply the scientific dossier, mapping and expert contacts, and would support the proposal publicly.

[Organisation, date]

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

[Country] urged to withdraw sponsorship of seabed mining as global rules remain unwritten

[Organisation] today called on [country] to suspend its sponsorship of [entity]'s activities in the [zone], pointing out that the International Seabed Authority has **still not adopted exploitation regulations** more than [n] years after the deadline created by the "two-year rule" expired on 9 July 2023.

"[Short quote from a scientist or affected community representative]," said [name, institution].

Forty countries have formally called for a moratorium or precautionary pause on deep-sea mining. The [zone] licence area contains [feature], where [one line of ecology and recovery time].

The next session of the ISA opens on [date].

Contact: [name, phone]. Scientific briefing, mapping and imagery available.

8H. Letter to a financier, insurer or buyer

Re: Exposure to deep-sea mining — [company / project]

To [bank / insurer / manufacturer]:

We note [your reported financing of / insurance for / potential purchase from] [company] in relation to seabed minerals from the Area.

We draw your attention to: the **absence of adopted exploitation regulations** at the International Seabed Authority; the **forty states** calling for a moratorium or precautionary pause; the scientific evidence on recovery timescales at [feature]; and the reputational and legal exposure of proceeding under a **national licensing route that bypasses** the Authority established by the Convention.

A number of manufacturers, banks and insurers have already committed not to source, finance or underwrite seabed minerals pending a robust regulatory framework. We ask whether [you] will make the same commitment, and would welcome a written response.

[Name, organisation, date]

Important Caveat

Templates are starting points. Adapt every one to the real activity, cite the actual documents, and attach the science. Three things to remember: **identify the sponsoring or flag state first**, because that is where a decision can actually be taken; **use the absence of agreed rules**, which is the strongest argument currently available on seabed minerals; and **file into the BBNJ processes while they are still open**, because the standards being written now will govern the high seas for a generation. If your fight is inside 200 nautical miles, use the relevant country's guide instead.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Ocean campaigning rewards precision about **who is responsible**, and almost all of it is free:

1. **Fix the zone first.** Is this inside 200 nautical miles or beyond? If inside, stop — it is a national decision and the relevant **country guide** is the right tool. Everything below assumes it is beyond.
2. **Name the sponsoring or flag state.** No company operates in the Area without a **sponsoring state**; no vessel operates on the high seas without a **flag state**. That government is the only actor that can withdraw permission, and it has a minister, a parliament and a press.
3. **Write to that state** (Section 8B), asking four questions: what implementing legislation exists, how effective protection can be ensured with **no exploitation regulations adopted**, what liability it carries, and whether it will suspend sponsorship.
4. **Use the regulatory vacuum.** The two-year deadline expired on **9 July 2023** and no exploitation regulations have been agreed since. That single fact is the strongest argument currently available.
5. **Count the bloc.** **Forty states** have called for a moratorium or precautionary pause. Ask whether yours is among them; if not, that is a concrete, winnable objective.
6. **File into the BBNJ processes** while the standards for impact assessment and protected areas are still being written (Section 8E). This window will not come again.
7. **Write to the money** (Section 8H). Financiers, insurers and buyers move faster than governments, and several have already committed not to touch seabed minerals.

If you do only the first three, you have identified the one government that can stop this and put a documented question to it that is difficult to answer. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Ocean governance is tilted not by a single captured regulator but by **fragmentation**: many bodies, none with general authority, and enforcement dependent on states of very different capacity and will.

What This Tilt DOES (and DOESN'T DO)

The tilt means there is no resident population and no local electorate; enforcement rests on **flag and sponsoring states** of very uneven capacity; the ISA operates by consensus and has failed to adopt exploitation rules for over a decade; the new Treaty **does not bind states that have not ratified** and is designed **not to undermine** existing bodies, so the seabed stays with the ISA and the fish with the fisheries organisations; and a company can now attempt to mine the international seabed under a **national statute**. It does **not** leave you without tools: **sponsorship is revocable**; the **absence of exploitation regulations** is a powerful argument against approving anything; **forty states** back a pause; the **BBNJ Agreement is in force**, creating high-seas impact assessment and protected areas for the first time; the **London Protocol** governs dumping and marine geoengineering; and **financiers, insurers and buyers** have proved unusually responsive.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **A sponsoring state that is democratic, has ratified the Treaty, and faces domestic scrutiny.** The strongest position: a government that can be asked questions it must answer, with a live legal vacuum to point at.
- **Mixed.** A sponsoring or flag state with limited capacity, or a fisheries body where your issue is one of many. Weight shifts to the science, the regional body's own conservation duties, and to buyers and financiers.
- **Entrenched.** A company operating under a national licensing route outside the ISA, backed by a government that has left or is ignoring the multilateral process. Assume the multilateral levers will be slow; concentrate on **finance**,

insurance, offtake and the courts of the state concerned, and on building the legal argument that such licences cannot confer good title to the common heritage of mankind.

Documented Ocean Dynamics

The record shows a regime simultaneously strengthening and being outflanked. **The high seas finally have a framework** — the BBNJ Agreement was adopted **19 June 2023**, reached **60 ratifications on 19 September 2025**, and **entered into force 17 January 2026**, covering roughly **two-thirds of the ocean**. **Its machinery is still being built** — a **Preparatory Commission** has worked toward the **first Conference of the Parties**, and the operative standards are being decided now. **The seabed regime is stuck** — the **two-year rule** was triggered **June 2021**, expired **9 July 2023 with no exploitation regulations adopted**, none agreed by the **July 2025** session, and the provision permits an application to be **considered in that absence**. **A large bloc wants a pause** — **forty countries** have called for a moratorium or precautionary pause, including Brazil, Canada, Chile, France, Germany, Mexico, New Zealand, Palau, Spain, Sweden, the United Kingdom and Vanuatu. **And the multilateral route is being bypassed** — a **US Executive Order of 24 April 2025** sought to expedite seabed licensing under the **Deep Seabed Hard Mineral Resources Act of 1980**, under which a company applied for **two exploration licences and a commercial recovery permit**. The through-line: **the strongest arguments now are that the rules do not exist and that a state answers for the entity it sponsors**.

Assessment Framework — Determine Your Situation

Ask: which **zone** is this in? Which state **sponsors or flags** it? Is it seabed minerals, fishing, dumping, cables or geoengineering — and therefore which body? Has the sponsoring state **ratified the BBNJ Agreement**, and is it in the **pause bloc**? Are exploitation regulations still absent? Is the operator relying on **national law instead of an ISA contract**? Who **finances, insures and buys**? Is a **BBNJ rulemaking window** open? The answers tell you whether to work the sponsoring state, the ISA session, the fisheries body, the Treaty processes, or the money.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Protest at sea is long-standing in ocean campaigning and legally hazardous: on the high seas a vessel falls under its **flag state's** jurisdiction, interference with another vessel can engage serious offences, and safety margins are thin. Most effective work happens on land — at ISA sessions, IMO and treaty meetings, company annual meetings, and in the capitals of sponsoring and flag states. Keep everything lawful, and note the specific asymmetry of this field: because so few people can verify what happens in the deep ocean, **your credibility is the campaign's principal asset**, and industry will test it.

Honest Assessment

Tilted fights are harder, and the ocean's tilt is structural. But "harder" is not "hopeless": in the space of three years the high seas have gone from having no protective framework to having one in force; forty states have lined up behind a precautionary pause; financiers, insurers and manufacturers have withdrawn from seabed minerals; and the mining industry has not yet been able to obtain the international rules it needs. Concentrate force where the tilt is weakest — **the sponsoring state, the missing regulations, the open rulemaking, and the money** — and measure success in deferrals, withdrawals and designations.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Ocean decisions are rarely corrupt in the ordinary sense. The characteristic failure is **structural conflict of interest**: the bodies that promote an activity are often the bodies that regulate it. Read your situation actor by actor, and publish documents rather than accusations.

The sponsoring state. A small state may sponsor a foreign-owned contractor while lacking capacity to supervise it, and may derive revenue from doing so. That is not corruption but a structural mismatch — precisely why sponsoring-state due-diligence obligations exist. Lever: ask publicly what legislation, monitoring capability and financial security are in place.

The Authority's dual mandate. A body charged with both organising activities in the Area and protecting the marine environment carries an inherent tension. Signs: pressure to conclude rules quickly rather than adequately. Lever:

submissions on the record, and the pause bloc.

Contractor-funded science. Much of what is known about licence areas is generated by contractors. Signs: baseline data embargoed or unavailable for scrutiny. Lever: insist on data publication as a condition, and support independent survey work.

Flags of convenience. A registry with minimal oversight escapes regulation rather than complying. Lever: name the registry and beneficial owner, and put the enforcement question to that state.

Trust funds and travel. Where participation by delegates from developing states depends on voluntary contributions — including from contractors — that dependence is worth stating factually, since it shapes who is in the room.

How to act on it, safely. Document from official records — session documents, contract summaries, registries, corporate filings and financial disclosures — before you speak. Route genuine concerns to the **sponsoring or flag state**, the relevant **body's secretariat**, and the **parliament, auditor or information commissioner** of the state concerned, and put them into your formal submissions where they are protected and consequential. Do not publish unproven allegations about named officials: in a small, well-resourced and litigious field, the documentary record is both stronger evidence and far safer ground.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In the ocean the timeline is set by meeting calendars you do not control — the ISA's sessions, the regional fisheries meetings, and the BBNJ Preparatory Commission and Conference of the Parties. Work backwards from whichever is next.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Fix the zone and the responsible state). - Establish whether the activity is **inside 200 nautical miles** — if so, switch to that country's guide — or **beyond national jurisdiction**. - Identify the **sponsoring state** (for the Area) or the **flag state** (for a vessel), and the contract, licence or authorisation. - Establish which body governs: **ISA** for seabed minerals, an **RFMO** for fishing, the **London Protocol** for dumping and geoengineering, **BBNJ** for impact assessment and protected areas. - Begin the referenced science on the site: habitat, endemism, recovery timescales, connectivity.

Weeks 4-12 (Put the question to the state). - Send the **sponsoring state letter** with its four questions (Section 8B), copied to a parliamentary committee. - Where a vessel is involved, write to the **flag state** (Section 8D). - Secure a **signed scientific critique** from an institution with standing. - Launch media timed to the next session (Section 8G).

Months 3-6 (Work the sessions and the rulemaking). - File **observations to the ISA** ahead of its session (Section 8C), leading with the absence of adopted exploitation regulations. - File into the **BBNJ processes** on impact-assessment standards and area-based tools while they are open (Section 8E) — this is the window that will not repeat. - For fisheries, submit to the **RFMO** on its own timetable. - Approach a state to carry an **area-based protection proposal** (Section 8F).

Months 6-12 (Apply the commercial and diplomatic pressure). - Write to **financiers, insurers and buyers** (Section 8H); track and publicise any withdrawal. - Press your state to **join the pause bloc** if it has not, or to act on it if it has. - Where a company is licensing outside the ISA, build and publish the **legal argument** that such a route cannot confer good title to the common heritage of mankind, and support any litigation. - Test the sponsoring state's answers against its actual legislation and publish the gap.

Beyond 12 months. - The **first BBNJ COP** and the sessions that follow will set the standards; stay in that process. - Protected-area proposals run on multi-year timetables; keep a state sponsor engaged. - Watch for **new applications, new sponsorships and re-flagging**, each of which reopens the argument.

Warning Signs — Act Early

A state announcing new seabed legislation or a new sponsorship; a contractor signalling an intention to apply for exploitation; an application filed under a **national** seabed statute rather than through the ISA; a vessel re-flagging to a registry with weak oversight; a proposal to trial ocean fertilisation or another marine geoengineering technique; a fisheries body deferring a catch decision. Each is a trigger to **identify the responsible state and write that week**.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: fix the **zone** before anything else; name the **sponsoring or flag state** and address it directly; lead with the **absence of adopted exploitation regulations**; file into the **BBNJ rulemaking while it is open**; recruit a state to carry a protected-area proposal; work the **financiers, insurers and buyers**; and time everything to the sessions. Losing campaigns: treat the ocean as one jurisdiction; campaign about EEZ drilling under high-seas law; miss the rulemaking windows; assume the new Treaty binds everyone; and overstate the science in a field where industry rebuts professionally.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in the ocean is measured in deferrals, withdrawals and designations, and it is worth naming them so you recognise one: - a **sponsoring state suspending or withdrawing sponsorship**, which removes a contractor's legal footing; - an **application deferred** while rules are negotiated; - **exploitation regulations strengthened** before adoption — on baselines, thresholds, monitoring, liability and financial security; - a state **joining the precautionary-pause bloc**, which now stands at **forty**; - an **area-based management tool or high-seas marine protected area** designated under the new Treaty; - **environmental impact assessment standards** adopted with public availability, comment and cumulative-effects requirements; - a **catch limit held** or a closure agreed at a fisheries body; - a **dumping or marine geoengineering permit refused** under the London Protocol; - **financiers, insurers or buyers withdrawing**, which has repeatedly moved faster than any regulator; - and a **national moratorium** enacted.

Decision Point: Continue, Modify, or Reassess

Reassess at each milestone. If the activity is inside an EEZ, stop and switch guides — otherwise you spend a year addressing the wrong government. If a sponsoring state is democratic and answerable, that is your highest-value target and worth sustained effort. If the operator has moved to a **national licensing route outside the ISA**, accept that multilateral levers will be slow and shift weight to finance, insurance, offtake and domestic litigation. If your issue is fishing, the fisheries body's meeting calendar governs everything. And if a **BBNJ rulemaking window** is open, prioritise it over almost anything else: standards written once will govern the high seas for decades, and this is the rare moment when a well-argued submission lands before the practice hardens.

The Bottom Line

Two-thirds of the ocean lies beyond any country's jurisdiction, and for most of modern history it was governed by little more than the freedom to use it. That has changed twice over. The **BBNJ Agreement** — adopted by consensus on **19 June 2023**, past the sixty-ratification threshold on **19 September 2025**, and **in force since 17 January 2026** — brings **environmental impact assessment, area-based management tools including marine protected areas, benefit-sharing from marine genetic resources and capacity-building** to areas beyond national jurisdiction for the first time, making the goal of protecting **30% of the ocean by 2030** achievable. Meanwhile the seabed regime has stalled: the Area and its minerals are the **common heritage of mankind**, administered by the **International Seabed Authority** and its **169 members**, but the **two-year rule** triggered in June 2021 expired on **9 July 2023 with no exploitation regulations adopted**, none had been agreed as of the July 2025 session, and the same provision lets an application be **considered in that vacuum** — which is why **forty states** now call for a moratorium or precautionary pause, and why a company has sought to bypass the Authority by applying under a **national statute** following a **US Executive Order of 24 April 2025**. The limits are real: nobody lives there, enforcement depends on **flag and sponsoring states** of uneven capacity, the ISA moves by consensus, and the Treaty binds only those who ratify it. But the leverage is unusually concentrated: **no contractor operates in the Area without a state sponsoring it, and sponsorship can be withdrawn**. Campaigns that fix the zone, name the responsible state, lead with the absence of rules, file into the rulemaking while it is open, recruit a state to carry a protected-area proposal, and pursue the financiers and buyers have already deferred applications, moved governments into the pause bloc and driven money out of the sector. No single step wins; the combination does. Start today by answering one question: **which government sponsors or flags this, and what has it actually legislated?**